

UNLAWFUL ENTRY

Hut dwellers have brazenly occupied village community centres built with MPs' and MLAs' local area funds

Bahla is a village spread over a vast desert 180 km north of Jaisalmer in Rajasthan. Its 2,000 inhabitants have a dozen community halls at their service, thanks to Qadir Bux, an employee of the Food Corporation of India and son of a local woman sarpanch. Bux dipped into the MPs' and MLAs' Local Area Development funds to build these community halls but contrary to the purpose they were built for, these halls are being used for residential purposes.

Bux's family and those of his cousins Mohammad and Maaldin occupy three of the halls. And he has no qualms about admitting it too. "Our families lived in huts which were too small to accommodate relatives during functions and festivities. So my mother recommended community halls for these families to live in," he says. The families have also retained their huts.

During the past two years, the Thar desert has seen hundreds of community centres springing up, funded by the MLA and MP funds scheme. Most of these halls are built next to tiny settlements called dhanis. They are named after the head of the family occupying them and cost a few lakh rupees each to build. Individuals, in connivance with elected representatives, get the centres sanctioned next to their huts. Then the entire family moves in and occupies the premises. Some of these halls are reportedly built on private land. Sang Singh Bhatti, an MLA from Jaisalmer, has sanctioned 452 community centres at a cost of Rs 4 crore. Of these, 390 are occupied by villagers. Rajya Sabha Member Najma Heptullah has sanctioned 161 community centres, of which almost all are occupied privately. Heptullah refuses to comment on the issue. "To say that these halls are under individual occupation is not true," says Bhatti denying any such trend.

But the families living in these halls are happy, thanks to their ascendance from shabby huts to spacious pucca rooms. The funding for the centres comes from money meant to be used



PURUSHOTTAM DIWAKAR

HOUSE FULL

Community halls meant for public use are now occupied by individuals

	SANCTIONED	OCCUPIED
Najma Heptullah *	161	161
Jaswant Singh *	11	9
Jamuna Barupal *	11	9
Krihnalal Valmiki *	5	5
Sang S. Bhatti **	452	392
Jalim Singh **	37	21
Mohanlal Gupta **	4	4
Suryakanta Vyas **	7	7

* MP, ** MLA

for basic amenities like drinking water, drought proofing, roads and electricity. Government officials say they are helpless in restricting the rampant misuse of funds and land, insisting that it is up to the discretion of MPs and MLAs who sanction funds. "There are no guidelines that help us prevent such misuse," says Vinod Pandya, collector.

Not many agree. Zila pramukh Shale Mohammad insists that the people's representatives must get a factual

MISUSE OF PROPERTY: An illegally occupied community hall

report from the administration before sanctioning a project. "It must be verified whether such a project—exists or not before sanctioning it." Once constructed, the care and upkeep of the halls lies with the local panchayats. "The administration and panchayats must ensure that the halls are vacated by families," says Jalim Singh, MLA from Shiv, who recommended 37 such centres during 2005-06.

But this is no easy task. Dwaraka Mal, sarpanch of Amar Sagar, has been trying to get two halls vacated for long in vain. "Now I have sent them a notice threatening legal action," he says.

The state Government has finally taken notice of the problem by banning the construction of new community centres. However, sanctions for community centres from MP and MLA funds are yet to be checked. To make concrete use of the lapse on the part of the local administration is to make the families pay for occupying the halls and use these funds for some real community welfare.

by Rohit Parihar